IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 309
CA(CAA)-91/ND/2023

IN THE MATTER OF:
ABC Industries Pvt. Ltd. and Pelican India Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 20.12.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH
HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Adv Awnish Kumar
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

The petition is not supported by proper affidavit required to be filed in terms of the provisions of Section 230(2) of the Companies Act, 2013. We find that the blanks in the brief synopsis filed along with the petition. The petition is not containing any specific tabulated chart indicating the stand of the stakeholders viz. secured creditors, unsecured creditors and equity shareholders qua the scheme of amalgamation. Ld. Counsel may also collect the check list/format/information are required to be furnished along with the petition filed under Section 230-232 of the Companies Act, 2013.

Ld. Counsel appearing for the Applicant wish to withdraw the present petition. **In view of the stand taken by him, the petition is dismissed as withdrawn.** It goes without saying that the Applicant is at liberty to file a fresh application in accordance with law.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

UPASANA